

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF BORISOVA AND OTHERS v. RUSSIA

(Applications nos. 53913/15 and 24 others –
see appended list)

JUDGMENT

STRASBOURG

21 March 2024

This judgment is final but it may be subject to editorial revision.

COUNCIL OF EUROPE
CONSEIL DE L'EUROPE

In the case of Borisova and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 22 February 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Kasparov and Others v. Russia* (no. 2), no. 51988/07, §§ 48-51, 13 December 2016, relating to the unfairness of the proceedings under the CAO due to the inability to present evidence supporting the assembly participant's version of events; *Elvira Dmitriyeva v. Russia*, nos. 60921/17 and 7202/18, §§ 77-90, 30 April 2019, as to administrative convictions for making calls to participate in public events; *mutatis mutandis*, *Tatár and Fáber v. Hungary*, nos. 26005/08 and 26160/08, §§ 36-42, 12 June 2012, concerning restrictions on acts constituting a form of political expression; *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; and *Korneyeva*, cited above, §§ 62-65, as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraphs 10 and 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 21 March 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Peeter Roosma President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	53913/15 19/10/2015	**Yelena Gennadyevna BORISOVA** 1985	Zboroshenko Nikolay Sergeyevich Mytishchi	Protest in defence of citizen's rights Moscow 01/02/2015	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/05/2015	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
2.	73381/17 05/10/2017	**Anastasiya Ilyinichna VASILYEVA** 1996	Glukhov Aleksey Vladimirovich Novocheboksarsk	Meeting with voters Cheboksary 29/08/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 16/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3.20 p.m. on 05/02/2021 until 8.32 a.m. on 06/02/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings; Art. 10 (1) - various restrictions on the right to freedom of expression - the applicant together with three other persons was fined RUB 20,000 under Article 20.2 § 2 of the CAO for having publicly displayed a banner "You will not kill everyone, you will not imprison everyone" accompanied by lighting flares at the bridge in Cheboksary on 25/02/2017 (final decision taken on 13/04/2017 by the Supreme Court of the Chuvashia Republic).	4,000

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3.	84539/17 14/12/2017	**Denis Viktorovich UVAROV** 1987	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO; article 20.2 § 5 of CAO	detention for 10 days; fine of RUB 10,000	St Petersburg City Court 16/06/2017 (both sets of proceedings)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant in terms of administrative-offence proceedings under Article 19.3 § 1 of the CAO was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
4.	84562/17 14/12/2017	**Aleksandr Sergeyevich KOVALENKOV** 1986	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	article 19.3 § 1 of CAO; article 20.2 § 5 of CAO	detention for 10 days; fine of RUB 10,000	St Petersburg City Court 20/06/2017; St Petersburg City Court 11/07/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3.25 p.m. on 12/06/2017 until afternoon on 13/06/2017, when the applicant was taken to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant in terms of administrative-offence proceedings under Article 19.3 § 1 of the CAO was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
5.	84567/17 14/12/2017	**Aleksandr Aleksandrovich BARANOV** 1983	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally Moscow 12/06/2017	article 19.3 § 1 of CAO	detention for 10 days	Moscow City Court 15/06/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 6.30 p.m. on 12/06/2017 until 10 a.m. on 13/06/2017; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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6.	1310/18 14/12/2017	**Mark Aleksandrovich ABRAMOV**	Peredruk Aleksandr Dmitriyevich St Petersburg	Anti-corruption rally St Petersburg 12/06/2017	article 20.2 § 5 of CAO; article 19.3 § 1 of CAO	fine of RUB 15,000; detention for 5 days	St Petersburg City Court 29/06/2017; St Petersburg City Court 16/06/2017	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.30 p.m. on 12/06/2017 until 6.30 p.m. on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	5,000
7.	3610/18 23/12/2017	**Olesya Valeryevna KHRISTOSENKO** 1997	Popkov Aleksandr Vasilyevich Sochi	Anti-corruption rally Sochi 12/06/2017 Rally to support Navalnyy Sochi 07/10/2017	article 20.2 § 6.1 of CAO article 20.2 § 8 of CAO	detention for 7 days detention for 8 days	Krasnodar Regional Court 12/07/2017 Krasnodar Regional Court 02/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant in both sets of administrative-offence proceedings was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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8.	3617/18 23/12/2017	**Valeriy Paatayevich TUAYEV** 1993	Popkov Aleksandr Vasilyevich Sochi	Anti-corruption rally Sochi 12/06/2017 Opposition protest Sochi 26/03/2018	article 20.2 § 6.1 of CAO article 20.2 § 8 of CAO	detention for 10 days detention for 20 days	Krasnodar Regional Court 23/06/2017 Krasnodar Regional Court 19/04/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant in both sets of administrative-offence proceedings was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
9.	3622/18 23/12/2017	**Sergey Nikolayevich LOMAN** 1971	Popkov Aleksandr Vasilyevich Sochi	Anti-corruption rally Sochi 12/06/2017	article 20.2 § 6.1 of CAO	detention for 10 days	Krasnodar Regional Court 23/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
10.	4821/18 09/12/2017	**Roman Viktorovich RUBANOV** 1980	Zhdanov Ivan Yuryevich Vilnius	Anti-corruption rally Moscow 12/06/2017	article 19.3 § 1 of CAO	detention for 10 days	Moscow City Court 19/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000

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11.	5246/18 03/01/2018	**Anna Aleksandrovna IVANOVA** 1991	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	article 20.2 § 5 of CAO; article 19.3 § 1 of CAO	fine of RUB 10,000; detention for 7 days	St Petersburg City Court 06/07/2017 (both sets of proceedings)	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.25 p.m. on 12/06/2017 until 3 p.m. on 13/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
12.	5280/18 08/01/2018	**Aleksey Gennadyevich BUDKIN** 1984	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally St Petersburg 12/06/2017	article 20.2 § 5 of CAO; article 19.3 § 1 of CAO	fine of RUB 10,000; detention for 7 days	St Petersburg City Court 27/07/2017 (both sets of proceedings	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 2.53 p.m. on 12/06/2017 until afternoon on 14/06/2017; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
13.	24905/18 18/05/2018	**Nikita Sergeyevich PAVLOV** 1991	Zinovyev Konstantin Mikhaylovich Nizhniy Novgorod	Rally to support A. Navalnyy Nizhniy Novgorod 29/09/2017	article 20.2 § 5 of CAO	fine of RUB 15,000	Nizhniy Novgorod Regional Court 23/11/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

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14.	39376/18 09/08/2018	**Ilya Sergeyevich DANILOV** 1989		Rally to support A. Navalnyy Lipetsk 28/01/2018	article 20.2 § 8 of CAO	detention for 20 days	Lipetsk Regional Court 12/02/2018	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 23/01/2021; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings (under Article 20.2 § 8 and Article 20.2 § 2 of the CAO); Art. 10 (1) - conviction for making calls to participate in public events - rally to support A. Navalnyy on 23/01/2021, Article 20.2 § 2 of CAO, detention for 10 days, final decision 28/01/2021 Lipetsk Regional Court; Prot.7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant in the administrative-offence proceedings under Article 20.2 § 2 of CAO was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
15.	50845/18 10/10/2018	**Aleksandr Andreyevich TEREVERKO** 1993	Zhdanov Ivan Yuryevich Vilnius	Political rally Voronezh 05/05/2018	article 20.2 § 5 of CAO; article 19.3 § 1 of CAO	fine of RUB 10,000; detention for 2 days	Voronezh Regional Court 26/06/2018 (both sets of proceedings)	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 7.35 p.m. on 05/05/2018 until 06/05/2018, when the applicant was taken to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of the CAO).	5,000

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16.	53841/18 25/10/2018	**Maksim Igorevich KOSTAREV** 1985	Peredruk Aleksandr Dmitriyevich St Petersburg	Political rally St Petersburg 05/05/2018	article 19.3 § 1 of CAO; article 20.2 § 5 of CAO	detention for 10 days; 20 hours of community work	St Petersburg City Court 11/05/2018 St Petersburg City Court 10/01/2019	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 5.50 p.m. on 05/05/2018 until 9.15 a.m. on 06/05/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 20.2 § 5 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 19.3 § 1 of CAO).	5,000
17.	57432/18 21/11/2018	**Mariya Arkadyevna PECHISHCHEVA** 1994	Mikhaylova Varvara Dmitriyevna St Petersburg	Political rally St Petersburg 05/05/2018	article 20.2 § 5 of CAO; article 19.3 § 1 of CAO	fine of RUB 10,000; detention for 3 days	St Petersburg City Court 29/05/2018; St Petersburg City Court 22/05/2018	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 5.40 p.m. on 05/05/2018 until 07/05/2018, when the applicant was taken to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	5,000
18.	3834/19 29/12/2018	**Rostislav Sergeyevich CHULEVSKIY** 1995	Popkov Aleksandr Vasilyevich Sochi	Political rally Krasnodar 05/05/2018	article 20.2 § 5 of CAO; article 19.3 § 1 of CAO	fine of RUB 10,000; detention for 1 day	Krasnodar Regional Court 04/07/2018	Art. 5 (1) - unlawful detention - escorting to and detention at the police station from 6.45 p.m. on 05/05/2018 until 10 a.m. on 06/05/2018; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000

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19.	4263/19 13/12/2018	**Denis Andreyevich SHAKHOV** 1999	Zhdanov Ivan Yuryevich Vilnius	Political rally St Petersburg 05/05/2018	article 20.2 § 5 of CAO; article 19.3 § 1 of CAO	fine of RUB 10,000; fine of RUB 700	St Petersburg City Court 26/06/2018 (both sets of proceedings)	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.55 p.m. on 05/05/2018 until 3.30 a.m. on 06/05/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	4,000
20.	5293/19 13/12/2018	**Ivan Aleksandrovich MILGUNOV** 1999	Zhdanov Ivan Yuryevich Vilnius	Political rally Voronezh 05/05/2018	article 20.2 § 5 of CAO; article 19.3 § 1 of CAO	fine of RUB 10,000; detention for 4 days	Voronezh Regional Court 25/06/2018 (both sets of proceedings)	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 5.47 p.m. on 05/05/2018 until 06/05/2018, when the applicant was taken to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings; Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 19.3 § 1 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.2 § 5 of CAO).	5,000

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21.	6638/19 21/01/2019	**Aleksandr Nikolayevich ZINOV** 1983	Zhdanov Ivan Yuryevich Vilnius	Political rally Kaluga 05/05/2018	article 19.3 § 1 of CAO; article 20.2.2 § 1 of CAO	fine of RUB 500; fine of RUB 5,000	Kaluga Regional Court 16/08/2018 Kaluga Regional Court 21/08/2018	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.10 p.m. until 5.49 p.m. on 05/05/2018; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of administrative-offence proceedings.	4,000
22.	17161/19 11/03/2019	**Irina Igorevna SIGOVA** 1988	Mikhaylova Kseniya Andreyevna St Petersburg	Rally in support of LGBTI community St Petersburg 04/08/2018	article 20.2 § 5 of CAO	fine of RUB 15,000	St Petersburg City Court 11/09/2018	Art. 6 (1) - unfair trial in administrative offence proceedings - various deficiencies of the administrative offence proceedings (domestic courts declined to consider and review the video recording, which would have demonstrated that the applicant did not participate in the unauthorised rally).	3,500
23.	18240/19 22/03/2019	**Aleksey Yuryevich VORSIN** 1987	Glushkova Tatyana Sergeyevna Moscow	Rally in support of S. Furgal Khabarovsk 25/07/2020	article 20.2 § 6.1 of CAO	detention for 10 days	Khabarovsk Regional Court 27/10/2020	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 4.55 p.m. on 15/08/2020 until 17/08/2020, when the applicant was taken to the court; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings under Article 20.2 § 8 (final decision 04/10/2018) and Article 20.2 § 6.1 of the CAO (final decision 27/10/2020); Art. 10 (1) - conviction for making calls to participate in public events - 1) rally to support A. Navalnyy and S. Furgal on 23/01/2021, Article 20.2 § 8 of the CAO, fine of RUB 150,000, final decision on 24/02/2021 by the Khabarovsk Regional Court;	7,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								2) protest against retirement age hike on 09/09/2018, Article 20.2 § 8 of the CAO, detention for 15 days, final decision on 04/10/2018 by the Khabarovsk Regional Court.	
24.	31913/19 29/05/2019	**Oleg Aleksandrovich YELANCHIK** 1990		Protest against the war in Ukraine Moscow 06/03/2022	article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 29/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station for compiling an offence report on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in the administrative-offence proceedings under Article 17.3 § 2 of the CAO (final decision taken by the Dorogomilovskiy District Court of Moscow on 23/01/2019).	4,000
25.	57166/19 16/10/2019	**Isropil Mikailovich NALGIYEV** 1990	Agaltsova Marina Vladimirovna Moscow	Protest against change of borders between Ingushetia and Chechnya Magas 25/03/2019	article 20.2 § 5 of CAO	fine of RUB 20,000	Supreme Court of the Ingushetia Republic 13/06/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500

[1] Plus any tax that may be chargeable to the applicants.